EXHIBIT 20

PROCUREMENT CARDHOLDER AGREEMENT AND ACKNOWLEDGEMENT OF RECEIPT

ORANGE COUNTY CARDHOLDER AGREEMENT AND ACKNOWLEDGEMENT OF RECEIPT

I agree to use this procurement card only for actual and necessary County business expenses incurred by me in accordance with the County's Procurement Card Procedures.

I have read the Procurement Card Procedures and agree to abide by the procedures contained therein. I acknowledge that use of this card for any purpose other than County approved business expenses is prohibited and will be grounds for disciplinary action, up to and including termination. In addition, I must reimburse the County for such charges.

I agree to surrender the procurement card immediately upon retirement, termination, or upon request of an authorized representative of the County. I understand that use of the procurement card after privileges are withdrawn is prohibited.

If the card is lost or stolen, I will immediately notify the issuing bank by telephone. I will confirm the telephone notification by mail or facsimile to the issuing bank with a copy to Procurement Monitor. I understand that failure to promptly notify the issuing bank of the theft, lost, or misplacement of the procurement card may make me responsible for any fraudulent use of the card.

The use of this procurement card is to be limited to $10,000.00 or less per transaction in accordance with the procedures.

I certify that I received the VISA procurement card listed below and a copy of the County's Procurement Card Procedures. I understand that failure to use this procurement card in accordance with all procedures may result in my card privileges being suspended or revoked. I further understand that personal use of the procurement card is strictly prohibited. Moreover, any personal use will require immediate reimbursement to the County, cancellation of card privileges and disciplinary action, which may include dismissal.

I hereby authorize the County to deduct from my wages or from any other amounts payable to me, an amount equal to the total charges for improper or unauthorized purchases with the procurement card even if I am no longer employed by the County. Also, if the County initiates legal proceedings to recover amounts owed by me for unauthorized/improper purchases, I agree to pay court costs, reasonable attorney fees and other expenses incurred by the County in such proceedings assuming the County prevails in such legal action.

Card Number:_____

Single Purchase Limit: $10,000.00
30-Day Limit: $50,000.00

Signature: _____

_____
(Print or Type Name)

Date:_____

Division:_____

Extension:_____

Division Transaction Approver:_____

Extension: _____

c: Cardholder
Division Transaction Approver
Procurement Division Procurement Card Program Administrator
Accounts Payable

Delinquent Statements

A cardholder is in violation when they fail to submit the statement along with the required documentation, including all applicable reconciliation functions by the deadline set by the Procurement Division and Comptroller/Accounts Payable.

- First Occurrence — Written Notice of Warning to the cardholder from Comptroller/Accounts Payable.
- Second Occurrence — Infraction Letter to the cardholder from Comptroller/Accounts Payable.
- Third Occurrence — Refer infraction to Procurement for three (3) month suspension.
- Fourth Occurrence — Refer infraction to Procurement for six (6) month suspension.
- Fifth Occurrence — Refer infraction to Procurement for twelve (12) month suspension.
- Sixth Occurrence — Refer to Procurement to permanently revoke cardholder privileges.

All warnings and infractions will be noticed to the cardholder and copied to the Division Manager, Transaction Approver, Procurement Manager, and Procurement Card Administrators.

Misuse of Procurement Card:

Procurement Card misuse includes, but is not limited to, pyramiding, other *unauthorized purchases, and use of the card by someone other than the cardholder (including their staff or administrative support). The cardholder will receive notice informing them of the infraction and providing them the opportunity to respond with any additional information that might clarify the situation. If acceptable information is received, the infraction notice will be withdrawn. If no information is received or the information received is unacceptable, the warning will remain and future offenses will be handled as specified in this section.

- First Occurrence — Written Notice of Warning to the cardholder from Procurement.
- Second Occurrence — Infraction letter to the cardholder from Procurement.
- Third Occurrence — Infraction letter to notify cardholder of a three (3) month suspension of cardholder privileges from Procurement.
- Fourth Occurrence — Infraction letter to notify cardholder of a six (6) month suspension of cardholder privileges from Procurement.
- Fifth Occurrence — Infraction letter to notify cardholder of twelve (12) month suspension of cardholder privileges from Procurement.
- Sixth Occurrence — Notification of permanent revocation of cardholder privileges from Procurement.

All suspension, revocations or terminations will be noticed, by the Procurement Division, to the cardholder and copied to the Division Manager, Transaction Approver, Procurement Card Administrator and Accounts Payable.

Any cardholder who demonstrates a lack of responsibility by failing to meet the overall requirements of the procurement card program will have their cardholder privileges permanently revoked.

***Unauthorized purchases included but are not limited to the following:**

Pyramiding – The purchase of two or more of the same requirements within a short period of time that collectively exceeds the single purchase limit.
Payment of invoices that are for purchases that are 45 days or older. See Section II, A.8.
Payment of items for personal use.

****Note: These requirements do not supersede Orange County Personnel Policy and cardholders may be subject to further disciplinary action.**

Signature: _____ Print:_____

Date:_____ Employee ID#_____